

Amendment No. 5 to SB2171

Yager
Signature of Sponsor

AMEND Senate Bill No. 2171

House Bill No. 1898*

by deleting § 68-107-102(2) in SECTION 1 and substituting:

(2) "Artificial intelligence model" means a machine-learning based model that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments and that is capable of using machine- and human-based inputs to perceive real and virtual environments, abstract such perceptions into models through analysis in an automated manner, and use model inference to formulate options for information or action;

AND FURTHER AMEND by deleting § 68-107-102(5) in SECTION 1 and substituting:

(5) "Child safety risk" means a material and foreseeable risk that a covered chatbot will engage in behavior when interacting with a minor that, if it had been engaged in by a human, would be deemed to intentionally or recklessly cause:

(A) Death or bodily injury to the minor, including as a result of self-harm;

or

(B) Damage to the mental health of such minor that constitutes severe emotional distress;

AND FURTHER AMEND by deleting § 68-107-102(6) and substituting:

(6) "Covered chatbot":

(A) Means a service that:

(i) Allows an ordinary person to have conversations where humanlike responses are generated by a foundation model;

(ii) Is reasonably and foreseeably likely to be accessed by minors;
and

(iii) Has at least one million (1,000,000) monthly active users; and

(B) Does not include:

(i) Software that operates solely for the purpose of customer service, enterprise and business operations, productivity and analysis related to source information, internal research, or technical assistance, regardless of the software's capability to use natural language inputs and generate natural language outputs;

(ii) Software that is incorporated into a video game and cannot discuss topics related to mental health, self-harm, or sexually explicit content, or maintain a dialogue on other topics unrelated to the video game;

(iii) Software that operates solely in connection with a specific physical location, such as a theme park or location-based experience, including services related to visiting or accessing such location, at physical events, or for the promotion, marketing, or exhibition of a film, television program, or other audiovisual work, and which cannot maintain a dialogue on topics unrelated to the physical location, event, or such work;

(iv) An entity regulated under title 56; or

(v) A covered entity or business associate governed by the privacy, security, and breach notification rules issued by the United States department of health and human services (45 CFR Parts 160 and 164), established pursuant to the federal Health Insurance Portability and Accountability Act of 1996 (42 U.S.C. § 1320d et seq.);

AND FURTHER AMEND by deleting § 68-107-102(8)-(14) in SECTION 1 and substituting:

(8) "Large chatbot provider" means a person who makes a covered chatbot available in this state and who, together with the person's affiliates, collectively had an annual revenue of twenty-five million dollars (\$25,000,000) or more;

(9) "Minor" means an individual who has not yet attained eighteen (18) years of age;

(10) "Monthly active users" means the total global number of unique users who have directly interacted with a service at least once in the preceding thirty (30) days, whether or not those users have registered accounts with the service;

(11) "Person" means an individual, executor, administrator, or other personal representative, or a corporation, partnership, association, or any other legal or commercial entity, whether or not a citizen or domiciliary of this state and whether or not organized under the laws of this state; and

(12) "Property" means tangible or intangible property.

AND FURTHER AMEND by deleting § 68-107-103(a)(4) in SECTION 1 and substituting:

(4) To the extent applicable, incorporates national standards, international standards, and industry-consensus best practices into the large chatbot provider's child safety plan;

AND FURTHER AMEND by deleting § 68-107-103(a)(5) in SECTION 1 and substituting:

(5) Revisits and updates the child safety plan, including any criteria that trigger updates and how the large chatbot provider determines when its covered chatbots are substantially modified enough to require disclosures pursuant to subsection (c);

AND FURTHER AMEND by deleting § 68-107-103(c) in SECTION 1 and substituting:

(c)

(1) Within thirty (30) days after the date a covered chatbot first qualifies as a covered chatbot, and before, or concurrently with, making a substantial modification to a covered chatbot operated by a large chatbot provider, the large

chatbot provider must conspicuously publish on the large chatbot provider's internet website summaries of:

- (A) Assessments of child safety risks conducted pursuant to the large chatbot provider's child safety plan;
- (B) The results of the assessments;
- (C) The extent to which third-party evaluators were involved in the assessments; and
- (D) Other steps taken to fulfill the requirements of the child safety plan.

(2) A large chatbot provider is not required to make a disclosure required under subdivision (c)(1), if:

(A) The substantial modification consists only of integrating a modified version of an existing foundation model into its covered chatbot; and

(B) One (1) or more of the following are true:

(i) The modification to the foundation model was made by a person unaffiliated with the large chatbot provider, including the original developer of the foundation model;

(ii) The modification to the foundation model does not increase child safety risks from the covered chatbot; or

(iii) The modification to the foundation model was made automatically as part of a continuous learning process and the large chatbot provider has made a disclosure pursuant to subdivision (c)(1) with respect to the covered chatbot in the preceding ninety (90) days.